

M/S Saifenco Works v. Director, Electrical Safety, Government of Uttar Pradesh and Another

High Court of Judicature at Allahabad · Division Bench · 26 September 2023 · 2023:AHC:186264-DB · WRIT - C No. - 24754 of 2023 · **Writ disposed; improper bill revision left to clause 6.5.**

HEADNOTE

Prayer no. 1 was not pressed after the State accepted it. If the bill is not being revised properly, the consumer may approach the authority under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. Waiver of interest for the period a wrong bill was issued may be raised under the relevant clause of the Code. Writ disposed with those observations.

FACTUAL SUMMARY

M/S Saifenco Works filed Writ-C No. 24754 of 2023 against the Director, Electrical Safety, Government of Uttar Pradesh and another. The petition was adjourned on 21 August 2023 at the petitioner's request and on 13 September 2023 because lawyers were abstaining from work. On 26 September 2023 counsel stated that prayer no. 1 had been accepted by the State and was not pressed. The order notices that a bill was not being revised properly and that interest might be waived for the period a wrong bill had been issued.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

improper revision of a bill

HOLDING

Prayer no. 1, accepted by the State, was not pressed. If the petitioner is aggrieved that the bill is not being revised properly, he may approach the relevant authority under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. If he seeks waiver of interest for the period a wrong bill was issued, he may raise that grievance under the relevant clause of the Code. The writ was disposed of with these observations. ¶ 3

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ court did not decide whether the bill was being revised properly and left the consumer to approach the authority under clause 6.5. ¶ 3

bill-correction-clause-6.5 A complaint that the bill is not being revised properly is to be taken to the relevant authority under clause 6.5. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL WAS WRONGLY ISSUED OR WAS NOT BEING REVISED PROPERLY

Left to the relevant authority under clause 6.5 if the petitioner is aggrieved. ¶ 3

NOT DECIDED — WHICH CLAUSE OF THE SUPPLY CODE GOVERNS WAIVER OF INTEREST FOR THE PERIOD A WRONG BILL WAS ISSUED

The Court permitted that grievance to be raised under the relevant clause without identifying it. ¶ 3

